

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302595	GRAY VS REVERSE MORTGAGE FUNDING	MOTION TO SPECIALLY SET HEARING FOR MSJ BY SAM CHANDRA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Monday, August 31, 2026, 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2403909	PALM DESERT SENIOR SOFTBALL ASSOCIATION VS GARCIA	MOTION FOR SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF PALM DESERT SENIOR SOFTBALL ASSOCIATION BY PALM DESERT SENIOR SOFTBALL ASSOCIATION, JAMES W. SEAVEY, VERA NORRIS

Tentative Ruling: Granted in part.

Granted in part as to Issue 1 only as to the Association. Granted as to Issues 10 and 11. Denied as to Issues 2 through 9, Issue 12, and Issue 13.

Moving party to provide notice pursuant to CCP 1019.5.

This is an action for legal malpractice. Plaintiffs Palm Desert Senior Softball Association (the "Association"), James W. Seavey, and Verna Norris (collectively, "Plaintiffs"), alleges that the Association hired Defendants Aaron F. Garcia and the Law Offices of Aaron F. Garcia (collectively, "Defendants") to represent them in the underlying case, *Palm Desert Senior Softball Association v. Senior Softball of Palm Desert*, case no. PSC2000536 (the "Underlying Case"). Plaintiff Seavey is the Secretary/Treasurer of the Association. Plaintiff Norris is Seavey's wife and served as the President of the Association.

Plaintiffs allege that trial was set for 6/23/23 and that Garcia failed to comply with the Local Rule 3401 pretrial steps. On 6/20/23, Garcia allegedly emailed Seavey: "I cannot wait any longer. I have to advise the court the case settled. I am going to put the date of settlement as of today." Garcia then filed a CM-200 notice of settlement on 6/21/23 with the "Unconditional Settlement of Entire Case" box marked, and dated the same for 6/20/23. Plaintiffs allege that no director or officer of the Association signed any settlement documentation before at least 6/29/23. Plaintiffs further allege that the 10/20/19 board minutes reserved any "final decree/decision" to the board's approval and the President's signature. After the trial date passed, Norris signed a settlement agreement on 6/30/23. Plaintiffs however argue that it was obtained only after Garcia had threatened to withdraw as counsel, without a board meeting discussion on the settlement, and after losing the 6/23/23 trial setting. On 11/20/23, the court dismissed the Underlying Case with prejudice. The court order recites: "Notice of Settlement filed. No compliance with Local Rule 3401 prior to trial."

The operative First Amended Complaint ("FAC"), filed 7/31/24, asserts: (1) breach of fiduciary duties by attorney; (2) frauds, misrepresentations, and deceptions; (3) extrinsic fraud on the court; (4) attorney's professional negligence; and (5) money had and received. Trial is set for 10/2/26.